

24STLC02435 24STLC02435

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Case Number: 24STLC02435 Hearing Date: July 29, 2026 Dept: 26

TENTATIVE RULING:

Defendant Hu Trans, LLC's Motion
for Reconsideration is denied.

Analysis:

Plaintiff Hash-Ulzii

Erdenekhuu ("Plaintiff") filed the instant action for breach of contract against Defendant Hu Trans, LLC ("Defendant") on April 3, 2024. On May 16, 2024, Defendant filed a Cross-Complaint against Plaintiff and EZH, Inc. (Cross-Defendants").

On July 25, 2024, the Court sustained Plaintiff's Demurrer to the second cause of action in the Cross-Complaint and deemed its Motion to Strike Portions of the Cross-Complaint moot. (Minute Order, 07/25/24.) Defendant filed the First Amended Cross-Complaint on August 14, 2024. On October 15, 2024, the Court sustained Plaintiff's Demurrer to the second cause of action in the First Amended Complaint without leave to amend. (Minute Order, 10/15/24.)

On April 17, 2025, the Court granted Plaintiff's Motion to Compel Defendant/Cross-Complainant's Attendance at Deposition, Request for Monetary Sanctions. (Minute Order, 04/17/25.) Plaintiff filed a Motion for Summary Judgment, or in the alternative, Summary Adjudication on May 23, 2025. On August 7, 2025, Plaintiff's also filed a Motion for Leave to Amend Answer to the First Amended Cross-Complaint.

The Motion for Summary Judgment, or in the alternative,

Summary Adjudication, came for hearing on August 20, 2025. The basis of the motion was Plaintiff's third affirmative defense, asserting that the breach of contract cross-claim was barred by the statute of limitations. The Court granted Cross-Defendant's Motion for Leave to Amend Answer on September 23, 2025. (Minute Order, 09/23/25.)

On November 18, 2025, the Court granted Defendant's ex parte application to continue the trial date and set it for January 20, 2026. (Minute Order, 11/18/25; Clerk's Certificate of Service, 11/18/25.) On January 20, 2026, the date was again continued to February 19, 2026, with both parties appearing through counsel and waiving notice of the order. (Minute Order, 01/20/26.) On February 19, 2026, both parties appeared and upon the completion of the trial the following day, the Court ordered judgment for Plaintiff in the amount of \$24,000.00 principal and interest of \$5,608.76. (Minute Order, 02/20/26.)

Defendant, in propria persona, filed a Motion to Set Aside/Vacate Judgment on March 19, 2026. Judgment in favor of Plaintiff was entered on March 26, 2026. The Court denied the Motion to Set Aside on April 14, 2026, and granted Attorney William Hanley's Motion to be Relieved as Counsel for Defendant on April 29, 2026. On April 24, 2026, Defendant filed the instant Motion for Reconsideration of Order Denying Motion to Vacate Judgment through Attorney Michael S. Lee. Plaintiff filed an opposition on July 16, 2026 and Defendant replied on July 22, 2026.

Discussion

Defendant moves for reconsideration of the Court's order denying its Motion to Set Aside/Vacate Judgment on March 19, 2026. The Motion is brought pursuant to Code of Civil Procedure section 1008. When a party seeks the same relief that was previously denied, it must bring a renewed motion pursuant to Code of Civil Procedure section 1008, subdivision (b). (California Correctional Peace Officers Ass'n v. Virga (2010) 181 Cal.App.4th 30, 43, fn. 11; see also Tate v. Wilburn (2010) 184 Cal.App.4th 150, 156-157.) When a motion has been denied in whole or in part, the moving party may apply again for the same relief at a later time only upon "new or different facts, circumstances or law." (Code Civ. Proc., § 1008, subd. (b); see Graham v. Hansen (1982) 128 Cal.App.3d 965, 969-970.) This is described as a jurisdictional requirement for the Court to grant reconsideration. Also, the statute requires the moving party "to show a satisfactory explanation for failing to provide the evidence

earlier, which can only be described as a strict requirement of diligence,” the purpose of which is to incentivize parties “to efficiently marshal their evidence.” (Baldwin v. Home Sav. of America (1997) 59 Cal.App.4th 1192, 1199 [citing Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 689-690].)

Jurisdiction to Reconsider Post-Judgment Motions

Plaintiff’s opposition first challenges the Court’s jurisdiction to reconsider the order denying the Motion to Set Aside/Vacate Judgment on the grounds that judgment has already been entered. Plaintiff cites APRI Ins. Co. v. Superior Ct. (1999) 76 Cal.App.4th 176 for the proposition that “[o]nce judgment has been entered, however, the court may not reconsider it and loses its unrestricted power to change the judgment.” (APRI Ins. Co. v. Superior Ct. (1999) 76 Cal.App.4th 176 182.) However, this does not directly address the Court’s jurisdiction to reconsider a post-judgment motion to vacate judgment. Courts can reconsider post-judgment orders regarding authorized post-judgment motions, like a motion to vacate default judgment. (D.R.S. Trading Co., Inc. v. Barnes (2009) 180 Cal.App.4th 815, 817, 820 (“We are unconvinced by the contention the existence of a judgment somehow precludes the court from reconsideration of a motion it is explicitly empowered to consider after judgment.”].) The Court has the power to reconsider its ruling denying Defendant’s Motion to Set Aside/Vacate Judgment.

New or
Different Facts, Circumstances or Law

Defendant, proceeding pro se, brought its Motion to Set Aside Vacate Judgment under Code of Civil Procedure section 473, subdivision (b) on the basis of mistake, inadvertence, surprise, or excusable neglect. Specifically, the Motion argued that Defendant did not receive proper notice of the trial, and had it received proper notice, would have appeared and defended the case. (Motion to Set Aside, filed 03/19/26, Boldbaatar Decl., ¶¶2-3.) The Motion did not address or raise any issues with respect to communication with Defendant’s attorney. The Court denied the Motion on the grounds that Defendant cannot proceed without counsel.

(Minute Order, p. 2, 04/14/2026.)

The Court also observed that the Motion to Set Aside/Vacate was without merit because the record established notice to Defendant through counsel. (Id., p. 3.)

Defendant now contends that the lack of notice resulted from

the failure of its former attorney, William B. Hanley, to inform it of the trial date. (Motion, Boldbaatar Decl., ¶¶7-10.) The Boldbaatar Declaration in support of the Motion attests that there was a breakdown in communication between Defendant and Attorney Hanley at the end of 2025, which is evidenced by Attorney Hanley serving Defendant with a Motion to be Relieved as Counsel on or around February 20, 2026, the same day as trial. (Ibid.) The Declaration states that on an unspecified date, Declarant Boldbaatar reviewed the docket and learned that trial had been held in his absence, at which time he attempted to contact Mr. Hanley without success. (Ibid.) Until these events, Declarant Boldbaatar believed Mr. Hanley was adequately litigating the case, despite the breakdown in communication. (Id. at ¶13.) Declarant Boldbaatar drafted and filed the initial Motion to Set Aside/Vacate Judgment without an attorney in desperation. (Id. at ¶11.) Defendant retained attorney Michael S. Lee on or around March 26, 2026. (Id. at ¶15.) The Motion to Set Aside/Vacate was denied April 14, 2026. The Declaration of Defendant's new counsel, Michael S. Lee, attests that Mr. Lee endeavored to have Mr. Hanley sign a Substitution of Counsel after Mr. Lee was retained and before the April 14, 2026 hearing date, but Mr. Hanley was non-responsive. (Motion, Lee Decl., ¶¶2-4, Exh. 1.)

These details, describing a breakdown in the relationship and the lack of communication between Defendant and its former counsel in the time leading up to trial, were known to Defendant, through its declarant at the time the Motion to Set Aside/Vacate was filed, and therefore are not new or different. (See *In re Marriage of Herr*, (2009) 174 Cal. App. 4th 1463, 1468 ("facts of which the party seeking reconsideration was aware at the time of the original ruling are not 'new or different.'") (citation omitted).)

Requirement of Diligence with respect to New Facts

Even if the information can be considered "new" because it was not previously presented to the Court, Defendant does not sufficiently explain why the information was not previously presented. Declarant Boldbaatar attests that following the trial and entry of judgment, Defendant was unable to contact its attorney and therefore filed the Motion to Set Aside/Vacate Judgment on his own in desperation. (Motion, Boldbaatar Decl., ¶¶8-11 and Exh. 3, pp. 6-7.) Defendant then promptly retained Mr. Lee as counsel, who attempted to reach Mr. Hanley to substitute in as counsel prior to a decision on the Motion to Be Relieved as Counsel but

received no response. (Motion, Lee Decl., ¶¶2-4, Exh. 1.)

The Court does not find that these circumstances show reasonable diligence on Defendant's part. All of the facts now presented about his attorney's alleged failure to keep him in the loop were necessarily within Defendant's knowledge at the time the Motion was filed but they were not presented to the Court in the Motion to Set Aside/Vacate. Defendant's decision to file the Motion to Set Aside/Vacate without the assistance of counsel is no excuse. Moreover, Defendant retained Mr. Lee on March 26, 2026, while the Motion to Set Aside/Vacate was still pending, and yet did not withdraw pro se Motion before it was decided nor seek to have the hearing on the Motion continued until after Attorney Hanley was relieved. Under these circumstances, the Court finds that Defendant has not shown that it "could not, with reasonable diligence," have earlier brought the newly raised facts to the Court's attention. (Baldwin, 59 Cal.App.4th at 1998.)

Based on the foregoing, the Motion for Reconsideration of the Court's order dated March 19, 2026 is denied.

Reconsideration of the March 19, 2026 Order Denying Defendant's Motion to Set Aside/Vacate Judgment

Even if reconsideration were granted, the Court would again deny the Motion to Set Aside/Vacate Judgment.

The Motion to Set Aside/Vacate Judgment was brought pursuant to Code of Civil Procedure section 473, subdivision (b) on the basis of Defendant's mistake, inadvertence, surprise, or excusable neglect. The Motion is supported by Declarant Boldbaatar's declaration, which states that the declarant and Attorney Hanley began experiencing a breakdown in communication at the end of 2025. (Boldbaatar Decl., ¶6.)

The declarant only learned that trial had occurred upon checking the docket after receiving his attorney's Motion to be Relieved as Counsel. (Boldbaatar Decl., ¶¶7-8.) Thus, the communication breakdown resulted in Defendant's surprise regarding the actual date of trial, which passed without Defendant's appearance.

These facts do not warrant relief from the judgment. As Plaintiff argues, Attorney Hanley's alleged

neglect does not provide a basis for relief.

(Buckert v. Briggs (Ct. App. 1971) 15 Cal. App. 3d 296, 301 (discretionary relief under § 473(b) “may not be predicated upon the neglect of the party’s attorney unless shown to be excusable because the negligence of the attorney in the premises is imputed to his client and may not be offered by the latter as a basis for relief.”) (internal citations omitted).) There is a recognized exception “where the attorney’s neglect is of that extreme degree amounting to positive misconduct, and the person seeking relief is relatively free from negligence.” (Id.) But that exception plainly does not apply here. The record is quite clear that Attorney Hanley persisted in actively litigating the case, including – after requests for continuance were overruled – appearing at trial and trying the case in his client’s absence. (See Opp., Hardacre Decl., ¶¶15-16.) This conduct is not abandonment. (See Garcia v. Hejmadi (1997) 58 Cal. App. 4th at 683 (“For the exception to apply, the attorney’s misconduct must be sufficiently gross to effectively abrogate the attorney-client relationship.”) The facts here distinguish this case from Buckert, supra, where the trial judge was found to have properly vacated judgment against the plaintiffs after their attorney not only failed to inform them of the trial date after promising to do so, but also failed himself to appear at trial. (Buckert, 15 Cal. App. 3d at 299; see also Garcia v. Hejmadi (1997) 58 Cal. App. 4th 674, 682–83) (describing Buckert); Carroll v. Abbott Lab’ys, Inc., (1992) 32 Cal. 3d 892, 900 (collecting cases and stating: “What [each of these cases] have in common is a total failure on the part of counsel to represent the client: each attorney had de facto substituted himself out of the case.” (emphasis added).)

Separately, the Court declines to draw any inference that Attorney Hanley in fact failed to attempt to alert Defendant regarding the trial date. It defies credulity that, although Attorney Hanley persisted in actively litigating the case, he for some reason would not attempt to notify Defendant of the trial date, nor contact Declarant Boldbaatar to appear as a witness, as Defendant claims.

Finally, however, even crediting that there was a break in communication that could be attributed to Attorney Hanley, the exception is still inapplicable because Defendant is not “relatively free from negligence.” (Buckert, 15 Cal. App. 3d at 301.) Defendant’s own surprise regarding the trial date and

loss of communication without counsel is not excusable. Nothing in the record indicates that Defendant had received any assurances that trial would not take place or was yet to be scheduled. (Cf., Buckert, 15 Cal. App. 3d at 299.) A reasonably prudent party to litigation under these circumstances would attend to trial dates and, even if represented, would not let the trial date come and go without checking in with counsel.

For these reasons, were reconsideration granted, the Court would again deny the Motion to Set Aside/Vacate.

Conclusion

Accordingly, Defendant Hu Trans, LLC's Motion for Reconsideration is denied.

Judicial Assistant to give notice.